

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

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CHRISTOPHER FORD,

Plaintiff,

-against-

THE CITY OF NEW YORK, POLICE OFFICER
WILLIAM SCHUMACHER, Shield No. 4618,
SERGEANT ROBERT MARTINEZ, POLICE OFFICER
QUATTROCCHI, and POLICE OFFICERS JOHN DOES
#1-10 (names and number of whom are unknown at
present),

Defendants.

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SUMMONS

Index No.:

The Basis of Venue is:
Location of Incident

Plaintiff designates Kings
County as the place of trial.

To the above named Defendants:

You are hereby summoned to answer the verified complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
December 30, 2017

Yours, etc.

/s/
JACOBS & HAZAN, LLP.
STUART E. JACOBS, ESQ.
Attorneys for Plaintiff
30 Vesey Street, 4th Floor
New York, New York 10007
(212) 577-2690

TO: City of New York, Corporation Counsel, 100 Church Street, NY, NY 10007
PO William Schumacher, Shield No. 4618, 75th Pct., 1000 Sutter Ave, BK, NY 11208
Sergeant Robert Martinez, 75th Precinct, 1000 Sutter Ave, Brooklyn, NY 11208
PO Quattrocchi, 75th Precinct, 1000 Sutter Ave, Brooklyn, NY 11208

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INDEX NO.:

VERIFIED COMPLAINT

JURY TRIAL DEMANDED

Plaintiff CHRISTOPHER FORD, by his attorneys, Jacobs & Hazan, LLP, as and for his Verified Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Sections 1983 and 1988, and of rights secured by the First, Fourth, Fifth and Fourteenth Amendments to the United States Constitution, and the common law and the laws of the State of New York. On March 23, 2016, at approximately 4:30 a.m., plaintiff, Christopher Ford was lawfully inside of his apartment located at 263 Hendrix Street, Brooklyn, New York, when the defendant New York City Police Officers unlawfully and forcibly gained entry into his apartment and subjected plaintiff to an unlawful search, seizure, false imprisonment, false arrest, and use of excessive force, causing plaintiff's upper two front teeth to get knocked out amongst other injuries. The defendant officers unlawfully entered plaintiff's apartment without a warrant or any other legal justification, falsely arrested plaintiff, and aggressively slammed plaintiff to the ground, causing his face to slam into the ground which knocked out his upper two front teeth. Thereafter, plaintiff was maliciously prosecuted and denied the right to due process/ a fair trial while he was criminally prosecuted for crimes he did not commit for approximately 7 months. The Criminal Court granted plaintiff's motion to dismiss all criminal charges brought against him and held that the allegations by defendants against plaintiff were facially insufficient to establish probable cause to arrest or prosecute plaintiff for any of the crimes they accused him of committing. All criminal charges brought against plaintiff terminated in his favor and were dismissed and sealed in their entirety on October 5, 2016. Plaintiff was deprived of his constitutional and common

law rights when the individual defendants unlawfully entered his home, unlawfully searched, seized, confined, arrested, imprisoned, denied his rights to due process/ a fair trial, subjected to excessive use of force, and maliciously prosecuted in violation of the Fourth, Fifth and Fourteenth Amendments to the United States Constitution.

PARTIES

2. Plaintiff CHRISTOPHER FORD is and was at all relevant times herein a resident of the State of New York.

3. POLICE OFFICER WILLIAM SCHUMACHER, Shield No. 4618, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

4. POLICE OFFICER WILLIAM SCHUMACHER, Shield No. 4618, is and was at all times relevant herein, assigned to the anticrime team at the 75th Precinct.

5. POLICE OFFICER WILLIAM SCHUMACHER, Shield No. 4618, is being sued in his individual and official capacity.

6. SERGEANT ROBERT MARTINEZ is and was at all times relevant herein, an officer, employee, supervisor and agent of the New York City Police Department.

7. SERGEANT ROBERT MARTINEZ is and was at all times relevant herein, assigned to the 75th Precinct as a supervisor of an anticrime squad.

8. SERGEANT ROBERT MARTINEZ is being sued in his individual and official capacity.

9. POLICE OFFICER QUATTROCCI is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

10. POLICE OFFICER QUATTROCCI is and was at all times relevant herein, assigned to the anticrime team at the 75th Precinct.

11. POLICE OFFICER QUATTROCCI is being sued in his individual and official capacity.

12. New York City Police Officers John Does #1-10 are and were at all times relevant herein officers, employees, and agents of the New York City Police Department.

13. Police Officers John Does #1-10 are being sued in their individual and official capacities.

14. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees

and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in he as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.

15. At all times relevant herein, defendant CITY OF NEW YORK, operated, maintained managed, supervised and controlled the New York City Police Department (“NYPD”) as part of and in conjunction with its municipal function.

16. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

17. Plaintiff in furtherance of his causes of action brought pursuant to New York State law filed a timely Notice of Claim against the CITY OF NEW YORK, in compliance with the Municipal Law Section 50.

18. More than thirty (30) days have elapsed since service of said Notice of Claim was filed and THE CITY OF NEW YORK has failed to pay or adjust the claim.

19. The CITY OF NEW YORK conducted a hearing pursuant to 50-h of the general municipal law on or about January 25, 2017

20. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

21. Plaintiff sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

STATEMENT OF FACTS

22. On March 23, 2016, at approximately 4:30 a.m., plaintiff was lawfully inside of his apartment, located on the second floor of 263 Hendrix Street, Brooklyn, New York, with a small group of his co-workers who went with plaintiff to his apartment to socialize after they finished their shifts at work when defendant Sergeant Robert Martinez, supervisor of the anticrime squad at the 75th Precinct and the individually named police officer defendants who were members of the anticrime squad supervised by Sergeant Martinez arrived outside of the two story building where plaintiff lived.

23. Notably, Sergeant Robert Martinez and the officers on the anti-crime squad he supervised previously came to plaintiff's apartment on March 20, 2016 at which time they harassed plaintiff and falsely arrested/ imprisoned plaintiff. Upon information and belief, defendants returned to plaintiff's apartment on March 23, 2016 to harass and falsely arrest plaintiff in retaliation against plaintiff after plaintiff made a complaint about the officers' conduct and unlawful behavior on March 20, 2016.

24. On March 23, 2016 at approximately 4:30 am defendants announced their presence outside of plaintiff's apartment by yelling into plaintiff's 2nd floor apartment window from Street level.

25. Plaintiff heard defendants shouting at his window and the defendants ordered plaintiff to let them into his apartment so that they could ensure everyone was safe inside.

26. When defendants came to his apartment on March 20, 2016, plaintiff opened his apartment door for them because he thought he had to obey the officer's orders, but he was later advised that the officers could not come inside of his apartment without a warrant. Therefore, when defendants returned to plaintiff's apartment on March 23, 2016 and ordered him to let them into his apartment, plaintiff lawfully told the officers that he was not required to allow them to enter his home without a warrant or any other legal justification.

27. In response, defendants unlawfully kicked down the front door to plaintiff's apartment and unlawfully entered the apartment without a warrant or any other legal justification, and unlawfully searched and interrogated plaintiff's co-workers who were guests at his apartment, causing plaintiff to suffer extreme embarrassment, emotional distress, and anxiety.

28. At no time relevant herein did plaintiff violate the law in any way, nor did the officers have a factual basis to believe he violated the law, or that there were exigent circumstances to forcibly enter and search his apartment.

29. Defendants also conducted an unlawful search of plaintiff and of plaintiff's entire apartment without probable cause, a warrant or any legal justification and did not recover any illegal drugs, guns, or contraband in the apartment, on plaintiff's person, or anywhere in plaintiff's possession, custody, or control.

30. Without provocation by plaintiff or any lawful justification, y\the officers assaulted, battered and subjected plaintiff top the use of excessive force, and used more physical force against plaintiff than was reasonably necessary for the officers.

31. Defendants physically grabbed plaintiff with their hands and slammed plaintiff onto the floor of his apartment face-first, causing plaintiff's face to smash against the floor and causing his upper two front teeth to be knocked out of his mouth.

32. For absolutely no legally justifiable reason, the defendants punched plaintiff in the chest and back approximately 6-8 times, causing severe pain and injuries to plaintiff's body and while plaintiff's co-workers were watching.

33. The excessive force used by the defendant officers against plaintiff was the direct and proximate cause of the injuries to plaintiff's teeth, mouth, face, chest and back and cause of plaintiff's two front teeth being knocked out of his mouth.

34. At no point did plaintiff resist arrest or act in a threatening manner towards the defendant officers in any way.

35. Defendants unlawfully handcuffed plaintiff and falsely arrested/imprisoned him without probable cause to believe he violated the law.

36. Defendants walked plaintiff out of his apartment in handcuffs and transported plaintiff against his will to the 75th Precinct where defendants unlawfully photographed and fingerprinted plaintiff, and unlawfully detained plaintiff in a holding cell for many hours.

37. At no time relevant herein did the defendant police officers recover any drugs, contraband or other illegal paraphernalia from plaintiff.

38. At March 23, 2016 at approximately 5:00 p.m., after approximately 12 hours in custody at the 75th precinct, plaintiff was transported to Kings County Central Booking and detained in a holding cell for many hours.

39. The defendant police officers provided the District Attorney's Office with false, misleading and/or incomplete information about the facts in their possession that they purportedly used to establish probable cause to arrest and/or prosecute plaintiff.

40. Based upon the false, misleading and/or incomplete information, facts and / or evidence provided to the District Attorney's Office by the defendant police officers and the criminal court complaint signed by defendant Police Officer Schumacher that contained false allegations, a malicious criminal prosecution was initiated against plaintiff wherein plaintiff was accused of committing crimes he did not commit and for which the officers lacked probable cause to accuse him of committing.

41. On March 23, 2016 at approximately 11:30 p.m., plaintiff was arraigned in Kings County Criminal Court, charged with crimes he did not commit, and released on his own recognizance.

42. Defendants maliciously and unlawfully charged plaintiff with Obstruction of Governmental Administration (PL 195.05), Resisting Arrest (205.30), Illegal Bottle Club (ABC Law 64(b)), without possessing facts necessary to establish probable cause to accuse plaintiff of committing any of the crimes they charges him with.

43. After being released from Kings County Criminal Court, plaintiff went to Coney Island Hospital for treatment of his teeth and mouth. Hospital staff prescribed plaintiff pain medication and referred him to a dentist.

44. Thereafter, plaintiff appeared in Court on approximately six dates and all charges were terminated in his favor and dismissed and sealed by the court in their entirety on October 5, 2016 after a seven month criminal prosecution.

45. The Criminal Court granted plaintiff's motion to dismiss all criminal charges brought against him and held that the allegations by defendants against plaintiff were facially insufficient to establish probable cause to arrest or prosecute plaintiff for any of the crimes they accused him of committing.

46. As a result of the false arrest and unlawful search of plaintiff's apartment, several items including \$1020 US currency, 2 music speakers, a Samsung cell phone, and other items were removed from plaintiff's apartment and not returned to plaintiff until seven months after the incident in October 2016.

47. Some of the police officer defendants observed the violation of plaintiff's rights under the Constitution of the United States and New York State Law and did nothing to prevent the unjustifiable search and seizure and prosecution of plaintiff.

48. The unlawful search, false arrest, and false imprisonment, excessive force, denial of the right to due process/ fair trial, and malicious prosecution of plaintiff by the individually named defendants caused plaintiff to sustain physical, psychological and emotional trauma.

FIRST CAUSE OF ACTION

Violation of Plaintiff's Fourth Amendment, Fifth Amendment and Fourteenth Amendment Rights

49. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 48 with the same force and effect as if more fully set forth at length herein.

50. The individually named police officer defendants while acting in concert and within the scope of their authority, unlawfully entered and searched plaintiff's apartment, caused plaintiff to be unlawfully seized, unlawfully searched, falsely arrested, falsely imprisoned, denied the right to due process/ right to fair trial and maliciously prosecuted without probable cause in violation of plaintiff's right to be free of unreasonable seizure under the Fourth Amendment to the Constitution of the United States, denial of his right to due process under the Fifth Amendment to the Constitution of the United States and to be free of deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

51. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

52. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, emotional, psychological and economic injuries.

SECOND CAUSE OF ACTION

False Arrest and False Imprisonment

53. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 52 with the same force and effect as if more fully set forth at length herein.

54. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine plaintiff and, in fact, confined plaintiff, and plaintiff was conscious of the confinement. In addition, plaintiff did not consent to the confinement and the confinement was not otherwise privileged.

55. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

56. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

57. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, emotional, psychological and economic injuries.

THIRD CAUSE OF ACTION

Unlawful Search

58. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 57 with the same force and effect as if more fully set forth at length herein.

59. The illegal approach, pursuit, stop and search employed by defendants herein terminated plaintiff's freedom of movement through means intentionally applied.

60. Defendants lacked probable cause to search plaintiff and his apartment.

61. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

62. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

63. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, emotional, psychological and economic injuries.

FOURTH CAUSE OF ACTION

Malicious Prosecution

64. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 63 with the same force and effect as if more fully set forth at length herein.

65. The acts and conduct of the defendants constitute malicious prosecution under the laws of the State of New York and New York State common law.

66. Defendants commenced and continued a criminal proceeding against plaintiff.

67. There was actual malice and an absence of probable cause for the criminal proceeding against plaintiff and for each of the charges for which they were prosecuted.

68. The prosecution and criminal proceedings terminated in plaintiff's favor on the aforementioned dates.

69. Plaintiff was subjected to a post-arraignment deprivation of liberty sufficient to implicate plaintiff's Fourth Amendment rights.

70. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York and the United States Constitution.

71. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

72. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

73. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, emotional, psychological and economic injuries.

FIFTH CAUSE OF ACTION

Violation of Plaintiff's Fourth And Fourteenth Amendment

Rights

74. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 73 with the same force and effect as if more fully set forth at length herein.

75. The use of excessive force by defendants by, amongst other things, by slamming plaintiff to the ground and punching his chest and back several times, constituted objectively unreasonable physical seizures of plaintiff in violation of his rights under the Fourth and Fourteenth Amendments to the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

76. Defendants were at all times agents, servants, and employees acting within the scope of his employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

77. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, emotional, psychological and economic injuries.

SIXTH CAUSE OF ACTION

Negligent Hiring, Retention, Training and Supervision

78. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 77 with the same force and effect as if more fully set forth at length herein.

79. The City of New York and its employees, servants and/or agents acting within the scope of their employment did negligently hire, retain, train and supervise defendants, individuals who were unfit for the performance of police duties on the aforementioned dates at the aforementioned locations.

EIGHTH CAUSE OF ACTION
Violation of Plaintiff's Fifth And Fourteenth Amendment Rights

Denial of Right to Fair Trial

80. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 79 with the same force and effect as if more fully set forth at length herein.

81. Defendants, individually and collectively, manufactured and/or withheld false evidence and forwarded this false evidence to prosecutors in the Kings County District Attorney's Office.

82. Defendants filled out false and misleading police reports and forwarded them to prosecutors in the Kings County District Attorney's Office.

83. Defendants signed false and misleading criminal court affidavits and forwarded them to prosecutors in the Kings County District Attorney's Office.

84. In withholding/creating false evidence against plaintiff Christopher Ford and in providing/withholding information with respect thereto, defendants violated plaintiff's constitutional rights to a fair trial under the New York State Constitution and under the Due Process Clause of the Fifth and Fourteenth Amendments of the United States Constitution.

85. As a result of the foregoing, plaintiff Christopher Ford sustained, inter alia, loss of liberty, emotional distress, embarrassment and humiliation, lost earnings and deprivation of his constitutional rights.

86. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

87. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

88. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, emotional, psychological and economic injuries.

NINTH CAUSE OF ACTION**Failure to Intervene**

89. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 88 with the same force and effect as if more fully set forth at length herein.

90. Defendants had an affirmative duty to intervene on behalf of plaintiff, whose constitutional rights were being violated in their presence by other officers.

91. Defendants failed to intervene to prevent the unlawful conduct described herein.

92. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, he was put in fear of his safety, and he was humiliated and subject to other physical constraints.

93. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

JURY DEMAND

94. Plaintiff hereby demands trial by jury of all issues properly triable thereby.

PRAYER FOR RELIEF

WHEREFORE, plaintiff Christopher Ford demands judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorneys' fees inclusive of costs and disbursements of this action, interest and such other relief as is appropriate under the law. That the plaintiff recover the cost of the suit herein, including reasonable attorneys fees pursuant to 42 U.S.C. § 1988.

Dated: New York, New York
December 30, 2017

By: /s/
STUART E. JACOBS
DAVID M. HAZAN
JACOBS & HAZAN, LLP
Attorneys for Plaintiff
30 Vesey Street, 4th Floor
New York, NY 10007
(212) 577-2690

ATTORNEY'S VERIFICATION

STUART E. JACOBS, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a partner of the law firm of **JACOBS & HAZAN, LLP**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe he to be true. The reason this verification is made by me and not Plaintiff is that Plaintiff does not reside in the county wherein I maintain my office.

DATED: New York, New York
December 30, 2017

/s/
STUART E. JACOBS